

excluded altogether, or whether it would be an ademption *pro tanto* or to the extent of the advance. It has now been settled that under such circumstances the subsequent advance will be an ademption *pro tanto*, so that the child can claim only the balance of the legacy (b).

9. **Residue.** — A share of a testator's *residuary estate* is regarded as a legacy to the amount of the share, and therefore if a testator bequeaths his residuary estate amongst his children and afterwards makes an advance in favour of a child, such advance, if it equal or exceed the amount of the share, will be an ademption of the whole share, and, if it be of less amount, will be an *ademption* of that child's share of the residue *pro tanto* (c). So if a parent make a provision for a child in his lifetime and afterwards bequeaths a residue to the same child, the amount of the residue will be an absolute or partial *satisfaction* to the amount of the residue (d).

10. **Codicil.** — It has been argued that where a testator gives a legacy to a child and then makes an advance, and then by a codicil *republics* the will, the original legacy shall be restored. But the Court has held the true construction of the codicil to be that the will is to have the effect which it would have had if the codicil had not been made except as altered by the codicil, and that as the double provision would not have taken place had the codicil not been made, it will not be set up by the codicil (e).

11. **Husband and issue.** — As a child's portion is commonly

681; *Ex parte Pye*, 18 Ves. 151; *Platt v. Platt*, 3 Sim. 512.

(b) *Pym v. Lockyer*, 5 M. & Cr. 29; *Kirk v. Eddowes*, 3 Hare, 509; *Ex parte Pye*, 18 Ves. 151, *per* Lord Eldon; *Montefiore v. Guedalla*, 1 De G. F. & J. 100, *per* Campbell, C.; *Re Pollock*, 28 Ch. D. 552. [If a father stands in the position of a mere debtor to his child, advances by him of sums less than the amount of the indebtedness are not *pro tanto* a satisfaction of the debt; *Reade v. Reade*, 9 L. R. Ir. 409.]

(c) *Dawson v. Dawson*, 4 L. R. Eq.

504; *Montefiore v. Guedalla*, 1 De G. F. & J. 93; *Stevenson v. Masson*, 17 L. R. Eq. 78; and see *Smith v. Strong*, 4 B. C. C. 493; *Freemantle v. Bankes*, 5 Ves. 79; *Smyth v. Johnston*, 31 L. T. N. S. 876.

(d) *Thynne v. Glengall*, 2 H. L. Ca. 131; *Earl of Glengal v. Barnard*, 1 Keen, 769; *Montefiore v. Guedalla*, 1 De G. F. & J. 103, *per* L. J. Turner; *Rickman v. Morgan*, 2 B. C. C. 394.

(e) *Booker v. Allen*, 2 R. & M. 270, see 300; *Lloyd v. Harvey*, *Ib.* 310; *Monck v. Monck*, 1 B. & B. 298; and see *Roome v. Roome*, 3 Atk. 181.